

***Risk Incident Report* Instructions**

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1. If the incident is catastrophic or there is a threat of legal action, *immediately* call the Legal Department for assistance. (Catastrophic incidents include a fatality or an injury that has the potential to result in permanent disability, such as loss of limb.) Do not interview the injured person, do not take witness statements, and do not complete the *Risk Incident Report* (TO-5). Instead, follow the direction of the Legal Department.

2. For incidents other than those described in [paragraph 1](#), the report should be completed if the incident meets one of the following criteria:

- It involved property owned by a legal entity used by the organization
- It occurred at a facility used for a theocratic purpose, such as a Kingdom Hall, Assembly Hall, branch property, or a facility rented for a theocratic event
- It involved someone engaged in an activity in behalf of the organization. (The report should not be completed for an incident involving a publisher in the field ministry)

The report is needed if the incident involved one or more of the following:

- Property loss or damage beyond minor repair
- Illness requiring hospitalization
- Personal injury requiring medical treatment beyond minor first aid
- Theft of funds, fraud, or other financial loss

3. The report should also be completed for a near miss.—See [paragraph 11](#) regarding what is considered a near miss.

4. If multiple individuals have been injured, submit a separate report for each person. Please send the completed report to the Branch Risk Management Desk in the Accounting Department *within 72 hours* of the incident. Whenever possible, *Risk Incident Reports* should be submitted using the online-entry version rather than a printed or PDF version of the form. In the case of serious injury or property loss or damage, provide a diagram and photographs

where possible of the general location to show the arrangement of items at the time of the incident. Such attachments may be submitted with the online-entry version of the form.

5. Please call the Branch Risk Management Desk *within 24 hours* if financial assistance is requested or questions arise about medical bills or other costs. Do not discuss fault or liability with anyone other than a branch office representative.

OBJECTIVE OF THE REPORT

6. The primary objective of the report is to improve safety, not to establish fault. Look beyond the initial cause and determine the root cause of the incident. This is useful in determining if there was a sequence of events that led to the incident.

ASSISTANCE

7. A fine spirit is shown by those who give loving aid to an injured person or provide volunteer labor for property repairs. Generally, family heads provide for their family's health needs. Insurance or government assistance programs may be available.—*od* chap. 12 pars. 12-15.

PROPERTY LOSS OR DAMAGE

8. When property loss or damage occurs, quick action can help to prevent further loss or damage. You should promptly report break-ins, thefts, and incidents of vandalism to the local authorities. If funds are needed to care for Kingdom Hall or Assembly Hall property damage, please contact the Local Design/Construction Department maintenance trainer as soon as possible for direction. (See the *Shepherd* book, chapter 21, paragraph 32.) In the event of damage to Kingdom Hall property, the contact congregation should submit the report. If a rented facility being used for an assembly or a convention sustains property damage, the Branch Risk Management Desk in the Accounting Department will work with the Convention and Assembly Desk in the Service Department to handle the incident.

FINANCIAL LOSS

9. When reporting theft of funds, fraud, or other financial loss, provide answers to the following questions in the incident description if the information is available: (1) Who are known to have been involved in the matter or are suspected of being involved? (2) To what extent were the secular authorities involved? (3) What steps have the brothers taken to prevent a similar loss from occurring in the future?

VEHICLE-RELATED INCIDENTS

10. If an incident involves one or more vehicles, list the location as "Vehicle" in the "Incident Location" section of the *Risk Incident Report* (TO-5). Please include the make, year, and model of each vehicle in the "Property Loss or Damage Details" section of the *Risk Incident Report*. Obtain a report from local authorities as soon as it is available and forward it to the Branch Risk Management Desk in the Accounting Department.

NEAR MISS

11. A near miss is defined as an incident that could reasonably have resulted in significant property loss or damage beyond minor repair or serious personal injury requiring medical treatment beyond minor first aid. It could be that the incident led to some property loss or damage or an injury, however, it could *easily* have resulted in a significantly worse outcome. In contrast, minor repairs typically involve damage that can be repaired with minimum expertise and basic tools, using low-cost parts that are readily available. Such repairs may

involve the replacement of various components, but usually not the complete replacement of a system. When reporting a near miss, use the “Basic Information” section of the *Risk Incident Report* (TO-5) to record what the potential severity of an injury or of property loss or damage could have been. There may be more than one type of potential loss for the same incident. Use the following guidelines when selecting the potential severity of property loss or damage:

Moderate	Under USD 5,000
Serious	Between USD 5,000 and USD 100,000
Large	Between USD 100,000 and USD 1,000,000
Catastrophic	Over USD 1,000,000

CONTACT ELDER

12. Designate a contact elder for the incident being reported. He will be the person the branch office contacts if additional information is required. For a serious injury, the contact elder should be an experienced brother, preferably from the same congregation as the injured person. If possible, he should keep in close communication with the injured person or the person’s family to determine what further help may be needed. This should be done even if the injured person is not one of Jehovah’s Witnesses. Christian love and concern will move the elder to be especially kind and helpful. Please keep the Branch Risk Management Desk in the Accounting Department informed of any significant changes in the injured person’s situation.

PERSON INVOLVED

13. The term “person involved” refers to a person who was injured, became ill, or had a direct role in the event. This person is not a witness to the incident. In the case of a serious injury, two responsible brothers should ask the injured person to describe what happened if he is able to do so. Please document the comments, questions, and answers on a separate sheet and attach it to the report. The following questions should be asked: (1) What were you doing when the incident occurred? (2) What injury did you suffer? (3) How did the incident happen?—See [paragraph 18](#).

WITNESSES

14. The term “witness” refers to a person who saw the incident occur. Please ask any witnesses to the incident or any other individuals who may have helpful information to describe what happened. Two responsible brothers should be present to document the comments and answers. Provide these on a separate sheet and attach it to the report. Please do not discuss who or what may have been at fault or what may have caused the accident or make reference to any legal action. Please ask the following questions: (1) What were you doing when the incident occurred? (2) Did you see the incident? (3) What did you observe happen? No one is obligated to answer these questions.—See [paragraph 18](#).

SAFETY FACTORS

15. If the incident occurred during construction or maintenance activity, the “Prevention” portion of the “Safety Factors” section must be completed. If the incident occurred during other activities, completion of the “Prevention” portion is preferred but optional.

LEGAL ACTION

16. Do not discuss fault or liability with anyone other than a branch office representative. If there is a threat of legal action or if you are contacted by an attorney or an investigator, do not discuss the matter. Instead, note the caller's information (name, address, and phone number), explain that someone will be in contact with him, and then call the Legal Department immediately. If you are contacted by an insurance company, note the caller's information, and then call the Branch Risk Management Desk in the Accounting Department.

PROTECTION OF PERSONAL INFORMATION

17. In order to protect the privacy of the persons involved and the witnesses, as well as the confidentiality of their personal information, disclose the information contained in the report to others only if you are directed to do so by a branch office representative.

NOTICE OF POLICY ON USE OF PERSONAL INFORMATION

18. When collecting the information for the *Risk Incident Report* (TO-5), the two responsible brothers should give each person involved and each witness a copy of the *Notice of Policy on Use of Personal Information* (TO-5n). (See [paragraphs 13](#) and [14](#).) If it is not possible to distribute the notice at that time, then no personal information should be submitted unless the person involved or the witness is a special full-time servant. If later it is possible to distribute the notice, the Branch Risk Management Desk in the Accounting Department may be contacted and additional information may be provided. The *Notice of Policy on Use of Personal Information* is not required for those in special full-time service.

DOCUMENT RETENTION

19. Do not keep the original *Risk Incident Report* (TO-5) if a paper copy or PDF was sent to the branch office. After submitting all information to the branch office, keep any original support documents you may have gathered regarding the incident in a secure location for three years after the date of the report unless directed otherwise by the branch office.